

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*.

DOCKET NO. 22-20

Served: January 13, 2023

ORDER OF: Linda S. CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On January 9, 2023, the parties filed a joint status report and proposed revised scheduling order ("Proposed Revised Schedule"). The parties state that they have exchanged initial disclosures, requests for documents, and request for admissions (Respondent), and they have conferred and agreed on depositions of witnesses. The parties further state in support of their proposal to revise the scheduling order that the document production, which is all electronically stored information ("ESI"), has been voluminous, and production and review of those records is more time-consuming than had been expected. As a result, the parties request additional time to complete discovery and a short adjustment to the briefing schedule.

The parties propose a revised discovery and briefing schedule which is reasonable.

The parties are hereby **ORDERED** to follow this amended schedule:

January 16, 2023	Complainant's Notice of Expert Testimony
January 27, 2023	Respondent's Notice of Expert Testimony
March 3, 2023	Last Day to Serve Interrogatories, Requests for Admission, and Final RFPs
March 10, 2023	Complete Deposition of Fact Witnesses
March 31, 2023	Close of Discovery
April 21, 2023	Complainant's brief, proposed findings of fact, and appendix
May 12, 2023	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix

May 24, 2023

Complainant's reply brief and responses to proposed findings of fact

The parties should refer to the Scheduling Order issued on October 6, 2022, for the Commission's requirements regarding filing briefs.



Linda S. Harris Crovella
Administrative Law Judge